

**ORDINANCE NO. \_\_\_\_\_**

**ENTITLED: "AN ORDINANCE CREATING CHAPTER 8.68, LIMITING THE USE OF PLASTIC SINGLE USE CARRYOUT BAGS, OF TITLE 8, HEALTH AND SAFETY, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, REGULATING THE USE OF SINGLE USE PLASTIC BAGS AS SPECIFIED."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That Chapter 8.68, Limiting the Use of Single Use Plastic Bags, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, is hereby created as set out in this ordinance.

**Chapter 8.68 - LIMITING THE USE OF SINGLE USE PLASTIC BAGS**

**8.68.010 – Purpose.**

The City of Cheyenne has the responsibility to protect the economy, natural environment and health of its citizens and guests and single use plastic bags create waste, pollute the city's waterways, roadways, landscapes and harm wildlife populations. Accordingly, the purpose of this chapter is to abate the nuisance caused by the proliferation of single use plastic bags by eliminating the use of these bags by all retail establishments within the jurisdiction of the City of Cheyenne.

**8.68.020 – Definitions; applicability.**

A. As used in this chapter:

1. "City" means the city of Cheyenne as defined by section 1.04.020 of the city code;
2. "Department" means the compliance department for the city of Cheyenne;
3. "Paper Grocery bag means a paper bag that contains a minimum of forty percent (40%) post consumer recycled content and is one hundred percent (100%) recyclable;
4. "Retail establishment" means any retail business in a commercial setting that sells consumer goods of any kind directly to a customer, including and without limitation, clothing, household goods or personal items;
5. "Reusable bag" means a bag with stitched handles that is specifically designed and manufactured for multiple reuse and is either:
  - a. Made of cloth or other machine washable fabric; or

- b. Other durable material suitable for reuse with stitched handles.
  - 6. "Single use plastic bag" means any bag made of plastic that is provided by a retail establishment to a customer at the point of sale or checkout, that is neither intended nor suitable or durable for continuous reuse as a carryout bag.
- B. This chapter shall not apply to the following:
- 1. Laundry dry cleaning bags, door-hanger bags, newspaper bags or packages of multiple bags intended for use as garbage, pet waste or yard waste receptacles;
  - 2. Bags provided by pharmacists or veterinarians to contain prescription drugs or other medical necessities;
  - 3. Bags provided by a restaurant or other food establishment that sells food to be eaten on or off its business premises;
  - 4. Bags used by a non-profit corporation or other hunger relief charity to distribute food, grocery products, clothing or other household items; or
  - 5. Bags used by a consumer inside a retail establishment to:
    - a. Contain bulk items, including but not limited to, produce, nuts, grains, candy or small hardware;
    - b. Contain or wrap frozen foods, meat or fish;
    - c. Contain or wrap flowers, potted plants or other items in order to prevent moisture damage to other purchases; or
    - d. Contain unwrapped prepared foods or bakery goods.

**8.68.030 - Single use plastic bags prohibited; environmental service fee; penalty.**

- A. No retail establishment shall provide or distribute a single use plastic bag to any customer. Retail establishments may only provide reusable bags, paper grocery bags or cardboard boxes at checkout to a customer. To further promote the use of reusable bags and reduce the quantity of single use carryout bags entering the city's waste stream, retail establishments are encouraged to make reusable bags free or for sale at checkout counters and to provide boxes for use at checkout counters free of charge.
- B. For any paper grocery bag provided to a customer by a retail establishment, the establishment shall charge the customer an environmental service fee of ten cents (\$.10) per bag. Retail establishments shall specify on the customer transaction receipt the number of paper grocery bags provided and the total amount of the environmental service fees charged. It shall be a violation of this section for any retail establishment

to pay or otherwise reimburse a customer for any portion of the environmental service fee.

- C. Fifty percent (50%) of the environmental service fee collected in accordance with this section shall be retained by the retail establishment for administrative costs incurred for collection and reporting of the service fee to the city as required under subsection (B) of this section. The remaining fifty percent (50%) of the environmental service fee shall be remitted on a quarterly basis to the city for use by the department in implementing and enforcing the requirements of this chapter and for the purposes of promoting this chapter and for public education regarding sustainability. Each quarterly payment shall be made not later than thirty (30) days after the end of the calendar quarter.
- D. Notwithstanding the requirements imposed under subsection (A) of this section, retail establishments shall not collect the environmental service fee from any person with a voucher or electronic benefits card issued under the Women, Infants and Children (WIC) Program, Emergency Food Assistance Program (TEFAP), Temporary Assistance to Needy Families Program (TANF) or the federal Supplemental Nutrition Assistance Program (SNAP).
- E. Nothing in this section shall be construed to prohibit retail establishments from making reusable bags available for sale to customers.

#### **8.68.040 - Enforcement, penalties and administrative remedies.**

- A. The compliance department is assigned administrative responsibility of this chapter. The department shall be authorized to take any and all other actions reasonably necessary to enforce this chapter, including but not limited to investigating alleged violations of this chapter, including entering the premises of any retail establishment during business hours.
- B. If the director of the department determines that a violation of this chapter has occurred, the department shall issue to the retail establishment a written warning advising the establishment of the violation and that any subsequent and substantially similar violation may subject the retail establishment to the criminal penalties specified under subsection (C) of this section.
- C. A retail establishment that violates any of the requirements imposed under this chapter, after having received a written warning issued in accordance with subsection (B) of this section, is guilty of a misdemeanor and punishable by fine of one hundred dollars (\$100.00), for which the operator of the retail establishment shall be liable. Each day of a continuing violation shall constitute a distinct and separate offense.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared

unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. That this ordinance shall be in full force and effect upon approval and publication but no sooner than January 1, 2024.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

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PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

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KRISTINA F. JONES, CITY CLERK

Published: \_\_\_\_\_  
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